

SECTION XI

TEXTILES AND TEXTILE ARTICLES

Notes

1 This section does not cover:

- (a) animal brush-making bristles or hair (heading 0502); horsehair or horsehair waste (heading 0511);
- (b) human hair or articles of human hair (heading 0501, 6703 or 6704), except straining cloth of a kind commonly used in oil-presses or the like (heading 5911);
- (c) cotton linters or other vegetable materials of Chapter 14;
- (d) asbestos of heading 2524 or articles of asbestos or other products of heading 6812 or 6813;
- (e) articles of heading 3005 or 3006; yarn used to clean between the teeth (dental floss), in individual retail packages, of heading 3306;
- (f) sensitised textiles of headings 3701 to 3704;
- (g) monofilament of which any cross-sectional dimension exceeds 1 mm or strip or the like (for example, artificial straw) of an apparent width exceeding 5 mm, of plastics (Chapter 39), or plaits or fabrics or other basketware or wickerwork of such monofilament or strip (Chapter 46);
- (h) woven, knitted or crocheted fabrics, felt or nonwovens, impregnated, coated, covered or laminated with plastics, or articles thereof, of Chapter 39;
- (ij) woven, knitted or crocheted fabrics, felt or nonwovens, impregnated, coated, covered or laminated with rubber, or articles thereof, of Chapter 40;
- (k) hides or skins with their hair or wool on (Chapter 41 or 43) or articles of furskin, artificial fur or articles thereof, of heading 4303 or 4304;
- (l) articles of textile materials of heading 4201 or 4202;
- (m) products or articles of Chapter 48 (for example, cellulose wadding);
- (n) footwear or parts of footwear, gaiters or leggings or similar articles of Chapter 64;
- (o) hairnets or other headgear or parts thereof of Chapter 65;
- (p) goods of Chapter 67;
- (q) abrasive-coated textile material (heading 6805) and also carbon fibres or articles of carbon fibres of heading 6815;
- (r) glass fibres or articles of glass fibres, other than embroidery with glass thread on a visible ground of fabric (Chapter 70);
- (s) articles of Chapter 94 (for example, furniture, bedding, luminaires and lighting fittings);
- (t) articles of Chapter 95 (for example, toys, games, sports requisites and nets);
- (u) Articles of Chapter 96 (for example, brushes, travel sets for sewing, slide fasteners, typewriter ribbons, sanitary towels (pads) and tampons, napkins (diapers) and napkin liners); or
- (v) articles of Chapter 97.

2 (A) Goods classifiable in Chapters 50 to 55 or in heading 5809 or 5902 and of a mixture of two or more textile materials are to be classified as if consisting wholly of that one textile material which predominates by weight over any other single textile material.

When no one textile material predominates by weight, the goods are to be classified as if consisting wholly of that one textile material which is covered by the heading which occurs last in numerical order among those which equally merit consideration.

(B) For the purposes of the above rule:

(a) gimped horsehair yarn (heading 5110) and metallised yarn (heading 5605) are to be treated as a single textile material the weight of which is to be taken as the aggregate of the weights of its components; for the classification of woven fabrics, metal thread is to be regarded as a textile material;

(b) the choice of the appropriate heading shall be effected by determining first the chapter and then the applicable heading within that chapter, disregarding any materials not classified in that chapter;

(c) when both Chapters 54 and 55 are involved with any other chapter, Chapters 54 and 55 are to be treated as a single chapter;

(d) where a chapter or a heading refers to goods of different textile materials, such materials are to be treated as a single textile material.

(C) The provisions of paragraphs (A) and (B) above apply also to the yarns referred to in note 3, 4, 5 or 6 below.

3 (A) For the purposes of this section, and subject to the exceptions in paragraph (B) below, yarns (single, multiple (folded) or cabled) of the following descriptions are to be treated as 'twine, cordage, ropes and cables':

(a) of silk or waste silk, measuring more than 20 000 decitex;

(b) of man-made fibres (including yarn of two or more monofilaments of Chapter 54), measuring more than 10 000 decitex;

(c) of true hemp or flax:

(1) polished or glazed, measuring 1 429 decitex or more; or

(2) not polished or glazed, measuring more than 20 000 decitex;

(d) of coir, consisting of three or more plies;

(e) of other vegetable fibres, measuring more than 20 000 decitex; or

(f) reinforced with metal thread.

(B) Exceptions:

(a) yarn of wool or other animal hair and paper yarn, other than yarn reinforced with metal thread;

(b) man-made filament tow of Chapter 55 and multifilament yarn without twist or with a twist of less than five turns per metre of Chapter 54;

(c) silkworm gut of heading 5006, and monofilaments of Chapter 54;

(d) metallised yarn of heading 5605; yarn reinforced with metal thread is subject to paragraph (A)(f) above; and

(e) chenille yarn, gimped yarn and loop wale-yarn of heading 5606.

4 (A) For the purposes of Chapters 50, 51, 52, 54 and 55, the expression 'put up for retail sale' in relation to yarn means, subject to the exceptions in paragraph (B) below, yarn (single, multiple (folded) or cabled) put up:

(a) on cards, reels, tubes or similar supports, of a weight (including support) not exceeding:

(1) 85 g in the case of silk, waste silk or man-made filament yarn; or

(2) 125 g in other cases;

(b) in balls, hanks or skeins of a weight not exceeding:

(1) 85 g in the case of man-made filament yarn of less than 3 000 decitex, silk or silk waste;

(2) 125 g in the case of all other yarns of less than 2 000 decitex; or

(3) 500 g in other cases;

(c) in hanks or skeins comprising several smaller hanks or skeins separated by dividing threads which render them independent one of the other, each of uniform weight not exceeding:

(1) 85 g in the case of silk, waste silk or man-made filament yarn; or

(2) 125 g in other cases.

(B) Exceptions:

(a) single yarn of any textile material, except:

(1) single yarn of wool or fine animal hair, unbleached; and

(2) single yarn of wool or fine animal hair, bleached, dyed or printed, measuring more than 5 000 decitex;

(b) multiple (folded) or cabled yarn, unbleached:

(1) of silk or waste silk, however put up; or

(2) of other textile material except wool or fine animal hair, in hanks or skeins;

(c) multiple (folded) or cabled yarn of silk or waste silk, bleached, dyed or printed, measuring 133 decitex or less; and

(d) single, multiple (folded) or cabled yarn of any textile material:

(1) in cross-reeled hanks or skeins; or

(2) put up on supports or in some other manner indicating its use in the textile industry (for example, on cops, twisting mill tubes, pirns, conical bobbins or spindles, or reeled in the form of cocoons for embroidery looms).

5 For the purposes of headings 5204, 5401 and 5508, the expression 'sewing thread' means multiple (folded) or cabled yarn:

(a) put up on supports (for example, reels, tubes) of a weight (including support) not exceeding 1 000 grams;

(b) dressed for use as sewing thread; and

(c) with a final 'Z' twist.

6 For the purposes of this section, the expression 'high-tenacity yarn' means yarn having a tenacity, expressed in cN/tex (centinewtons per tex), greater than the following:

— single yarn of nylon or other polyamides, or of polyesters:	60 cN/tex
— multiple (folded) or cabled yarn of nylon or other polyamides, or of polyesters:	53 cN/tex
— single, multiple (folded) or cabled yarn of viscose rayon:	27 cN/tex

7 For the purposes of this section, the expression ‘made up’ means:

- (a) cut otherwise than into squares or rectangles;
- (b) produced in the finished state, ready for use (or merely needing separation by cutting dividing threads) without sewing or other working (for example, certain dusters, towels, tablecloths, scarf squares, blankets);
- (c) cut to size and with at least one heat-sealed edge with a visibly tapered or compressed border and the other edges treated as described in any other subparagraph of this note, but excluding fabrics the cut edges of which have been prevented from unravelling by hot cutting or by other simple means;
- (d) hemmed or with rolled edges, or with a knotted fringe at any of the edges, but excluding fabrics the cut edges of which have been prevented from unravelling by whipping or by other simple means;
- (e) cut to size and having undergone a process of drawn thread work;
- (f) assembled by sewing, gumming or otherwise (other than piece goods consisting of two or more lengths of identical material joined end to end and piece goods composed of two or more textiles assembled in layers, whether or not padded);
- (g) knitted or crocheted to shape, whether presented as separate items or in the form of a number of items in the length.

8 For the purposes of Chapters 50 to 60:

- (a) Chapters 50 to 55 and 60 and, except where the context otherwise requires, Chapters 56 to 59 do not apply to goods made up within the meaning of note 7 above; and
- (b) Chapters 50 to 55 and 60 do not apply to goods of Chapters 56 to 59.

9 The woven fabrics of Chapters 50 to 55 include fabrics consisting of layers of parallel textile yarns superimposed on each other at acute or right angles. These layers are bonded at the intersections of the yarns by an adhesive or by thermal bonding.

10 Elastic products consisting of textile materials combined with rubber threads are classified in this section.

11 For the purposes of this section, the expression ‘impregnated’ includes ‘dipped’.

12 For the purposes of this section, the expression 'polyamides' includes 'aramids'.

13 For the purposes of this section and, where applicable, throughout the nomenclature, the expression 'elastomeric yarn' means filament yarn, including monofilament, of synthetic textile material, other than textured yarn, which does not break on being extended to three times its original length and which returns, after being extended to twice its original length, within a period of five minutes, to a length not greater than one and a half times its original length.

14 Unless the context otherwise requires, textile garments of different headings are to be classified in their own headings, even if put up in sets for retail sale. For the purposes of this note, the expression 'textile garments' means garments of headings 6101 to 6114 and headings 6201 to 6211.

15 Subject to Note 1 to Section XI, textiles, garments and other textile articles, incorporating chemical, mechanical or electronic components for additional functionality, whether incorporated as built-in components or within the fibre or fabric, are classified in their respective headings in Section XI provided that they retain the essential character of the goods of this Section.

Subheading notes

1 In this section and, where applicable, throughout the nomenclature, the following expressions have the meanings hereby assigned to them:

(a) 'Unbleached yarn':

Yarn which:

(1) has the natural colour of its constituent fibres and has not been bleached, dyed (whether or not in the mass) or printed; or

(2) is of indeterminate colour (grey yarn), manufactured from garnetted stock.

Such yarn may have been treated with a colourless dressing or fugitive dye (which disappears after simple washing with soap) and, in the case of man-made fibres, treated in the mass with delustring agents (for example, titanium dioxide).

(b) 'Bleached yarn':

Yarn which:

(1) has undergone a bleaching process, is made of bleached fibres or, unless the context otherwise requires, has been dyed white (whether or not in the mass) or treated with a white dressing;

(2) consists of a mixture of unbleached and bleached fibres; or

(3) is multiple (folded) or cabled and consists of unbleached and bleached yarns.

(c) 'Coloured (dyed or printed) yarn':

Yarn which:

- (1) is dyed (whether or not in the mass) other than white or in a fugitive colour, or printed, or made from dyed or printed fibres;
- (2) consists of a mixture of dyed fibres of different colours or of a mixture of unbleached or bleached fibres with coloured fibres (marl or mixture yarns), or is printed in one or more colours at intervals to give the impression of dots;
- (3) is obtained from slivers or rovings which have been printed; or
- (4) is multiple (folded) or cabled and consists of unbleached or bleached yarn and coloured yarn.

The above definitions also apply, *mutatis mutandis*, to monofilament and to strip or the like of Chapter 54.

(d) 'Unbleached woven fabric':

Woven fabric made from unbleached yarn and which has not been bleached, dyed or printed. Such fabric may have been treated with a colourless dressing or a fugitive dye.

(e) 'Bleached woven fabric':

Woven fabric which:

- (1) has been bleached or, unless the context otherwise requires, dyed white or treated with a white dressing, in the piece;
- (2) consists of bleached yarn; or
- (3) consists of unbleached and bleached yarn.

(f) 'Dyed woven fabric':

Woven fabric which:

- (1) is dyed a single uniform colour other than white (unless the context otherwise requires) or has been treated with a coloured finish other than white (unless the context otherwise requires), in the piece; or
- (2) consists of coloured yarn of a single uniform colour.

(g) 'Woven fabric of yarns of different colours':

Woven fabric (other than printed woven fabric) which:

- (1) consists of yarns of different colours or yarns of different shades of the same colour (other than the natural colour of the constituent fibres);
- (2) consists of unbleached or bleached yarn and coloured yarn; or
- (3) consists of marl or mixture yarns.

(In all cases, the yarn used in selvages and piece ends is not taken into consideration.)

(h) 'Printed woven fabric':

Woven fabric which has been printed in the piece, whether or not made from yarns of different colours.

(The following are also regarded as printed woven fabrics: woven fabrics bearing designs made, for example, with a brush or spray gun, by means of transfer paper, by flocking or by the batik process.)

The process of mercerisation does not affect the classification of yarns or fabrics within the above categories.

The definitions at (d) to (h) above apply, *mutatis mutandis*, to knitted or crocheted fabrics.

(ij) 'Plain weave':

A fabric construction in which each yarn of the weft passes alternately over and under successive yarns of the warp and each yarn of the warp passes alternately over and under successive yarns of the weft.

2 (A) Products of Chapters 56 to 63 containing two or more textile materials are to be regarded as consisting wholly of that textile material which would be selected under note 2 to this section for the classification of a product of Chapters 50 to 55 or of heading 5809 consisting of the same textile materials.

(B) For the application of this rule:

(a) where appropriate, only the part which determines the classification under interpretative rule 3 shall be taken into account;

(b) in the case of textile products consisting of a ground fabric and a pile or looped surface, no account shall be taken of the ground fabric;

(c) in the case of embroidery of heading 5810 and goods thereof, only the ground fabric shall be taken into account. However, embroidery without visible ground, and goods thereof, shall be classified with reference to the embroidering threads alone.